

Former Kew Biothane Plant

in the London Borough of Richmond Upon Thames

planning application no. 18/3310/FUL

Strategic planning application stage II referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Demolition of existing buildings and structures and redevelopment of the site to provide specialist older persons housing in a 4-6 storey building.

The applicant

The applicant is **Red & Yellow** and the architect is **Marchese Partners**.

Key dates

Stage 1 report: 19 November 2018

Council's Committee meeting: 24 July 2019

Strategic issues

X.

The Council's decision

In this instance Richmond upon Thames Council has resolved to grant permission subject to planning conditions and conclusion of a Section 106 legal agreement.

Recommendation

That Richmond upon Thames Council be advised that the Mayor is content for it to determine the case itself, subject to any action that the Secretary of State may take, and does not therefore wish to direct refusal or direct that he is to be the local planning authority.

Context

1 On 19 October 2019 the Mayor of London received documents from Lambeth Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. This was referred to the Mayor under Category 3D of the Schedule to the Order 2008:

- *‘Development – on land allocated as Green Belt or Metropolitan Open Land in the development plan, in proposals for such a plan, or in proposals for the alteration or replacement of such a plan and would involve the construction of a building with a floorspace of more than 1,000 square metres or a material change of use of such a building’*

2 On 19 November 2018 the Mayor considered planning report GLA/4617/01 and subsequently advised Richmond upon Thames Council that the application was acceptable in principle, but that it did not fully comply with the London Plan and draft London Plan for the reasons set out in paragraph 69 of the above-mentioned report. However, the resolution of those issues could lead to the application being fully compliant with the London Plan and draft London Plan.

3 A copy of the above-mentioned report is attached. The essentials of the case with regard to the proposal, the site, case history, strategic planning issues and relevant policies and guidance are as set out therein, unless otherwise stated in this report. On 24 July 2019 Richmond upon Thames Council decided that it was minded to grant planning permission and on XXXX it advised the Mayor of this decision. Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008 the Mayor may allow the draft decision to proceed unchanged, or direct Richmond upon Thames Council under Article 6 to refuse the application. The Mayor has until XXX 2019 to notify the Council of his decision and to issue any direction.

4 The decision on this case, and the reasons, will be made available on the GLA’s website www.london.gov.uk.

Consultation stage issues summary

5 At consultation stage, Richmond upon Thames Council was advised that the application does not comply with the London Plan and draft London Plan. The following strategic issues must be addressed for the application to fully accord with the London Plan and draft London Plan:

- **Metropolitan Open Land:** The proposal includes inappropriate development on Metropolitan Open Land. The applicant must demonstrate that very special circumstances exist to justify development on Metropolitan Open Land.
- **Specialist Older Persons Housing:** Provision of specialist older persons housing in the form of extra care accommodation is strongly supported. As the buildings afford the facilities required for day to day self-contained private domestic existence it is considered that the proposal falls within Use Class C3 of the Town and Country Planning (Use Classes Order) 1987.

- **Affordable housing:** As it is considered that the proposed extra care accommodation constitutes C3 residential under the Use Classes Order 1987 the Mayor's Housing SPG, draft London Plan and London Plan affordable housing policies apply therefore, the nil on-site affordable housing provision is unacceptable. The submitted viability assessment is not considered to meet the Mayor's SPG nor the NPPG. A compliant viability assessment must be submitted for robust interrogation by GLA officers to ensure that the maximum contribution is delivered in accordance with the London Plan and the draft London Plan. Early and late stage review mechanisms must be secured as necessary.
- **Design:** The scheme delivers high quality design. The applicant should consider further revisions to minimise impact on the MOL.
- **Inclusive design:** The scheme must be revised to incorporate the highest standards of accessibility and inclusive design.
- **Energy:** The applicant must explore the potential for additional measures to deliver further carbon dioxide reductions. Once all opportunities for securing further feasible on-site savings have been exhausted, a carbon offset contribution should be secured to mitigate any residual shortfall.
- **Water:** Further information required to demonstrate the scheme meets London Plan and draft London Plan drainage policies. The scheme must be revised to ensure it meets water consumption targets.
- **Transport:** a revised transport assessment must be submitted. The quantum of cycle spaces for staff and visitors and passive electric vehicle charging points must be increased. Conditions and Section 106 obligations are required to secure the following; delivery and servicing plan; travel plan and construction and logistics plan.

Update

6 Since Stage 1, GLA officers have reviewed further information, and engaged in discussions with the applicant and Lambeth Council with a view to addressing the outstanding matters. Furthermore, as part of the Council's draft decision on the case, various planning conditions and obligations have been proposed to ensure that the development is acceptable in planning terms.

Metropolitan Open Land

7 Whilst the development is proposed on Metropolitan Open Land, as reported at Stage 1, the development takes place entirely on previously developed land. Therefore, consideration has been given to whether the development meets the exception test g) under paragraph 145 of the NPPF as follows:

'Limited infilling or the partial or complete redevelopment of previously developed land, whether redundant or in continuing use (excluding temporary buildings), which would:

- *not have a greater impact on the openness of the Green Belt than the existing development; or*

- *not cause substantial harm to the openness of the Green Belt, where the development would re-use previously developed land and contribute to meeting an identified affordable housing need within the area of the local planning authority.'*

8 It was concluded that due to the proposed massing having a significantly larger presence than the existing structures on site, the development would have a greater impact on the openness of the MOL as perceived in key views but the impact of the development on the openness of the MOL albeit, the level of harm was not considered to be substantial. Given that it would not have a substantial impact on openness, and is entirely on previously developed land, the last test would be whether it would contribute to an identified affordable housing need. At consultation stage, the applicant had yet to put forward an affordable housing offer. Therefore, the development was not deemed to have fully met the exception test and would constitute inappropriate development in the MOL whereby development would only be acceptable should 'very special circumstances' exist to outweigh the impact of the development on MOL. The public benefits offered by the development included a net gain of publicly accessible landscaped MOL, that would enhance connectivity to the river walkway, including a small-scale children's play park, that would also be linked to public cafe facilities within the extra care building. However, these were not considered to be sufficient to outweigh harm to the MOL. As such, the proposed development on the MOL was deemed unacceptable in terms of the NPPF, London Plan Policy 7.16 and draft London Plan Policy G3.

9 Following Stage 1, the applicant has made an offer of £1,146,259 towards affordable housing this offer was made on the basis that the carbon offset payment was also diverted towards affordable housing.

10 The public benefits package has not substantively changed with the exception of the provision of a payment in lieu of affordable housing, which is discussed in more detail in the following section of this report.

11 Since the initial consultation stage, the applicant has undertaken further analysis in relation to sustainable development mitigation and adaptation matters in order to ensure compliance with the London Plan and draft London Plan energy and flood risk policies.

12 Clarification has been provided on the buildings cooling demand, overheating risk and the communal heat network to address the queries raised at Stage 1. In the updated proposal, PV has been omitted from the roof of the building. While the applicant was asked to maximise the roofs potential for PV, it is accepted that following necessary revision to the roof design there is very limited potential for PV on the remaining roof area.

13 After the additional information, the proposal is generally in accordance with the London Plan and draft London Plan energy policies. In addition, conditions have been included requiring a revised Sustainability Statement and Energy Statement.

14 In response to Stage 1 concerns regarding flooring and surface water it has been demonstrated that the finished floor level of the proposed building is over 600mm above the maximum likely water level adjacent the site. Flood resilience measures are therefore not required at The Core building. Nevertheless, a condition requiring a flood evacuation plan and flood resilient construction measures have been included. The approach to flood risk management therefore complies with the requirements of the London Plan policy 5.12.

Transport

15 Commitments to provide an additional long stay cycle space and a detailed construction management plan have been secured by condition. Although a detailed Delivery and Servicing Plan condition was requested at Stage 1, it is agreed that a Delivery and Servicing Plan condition is not necessary as the building will use the existing servicing arrangements shared by the rest of the hospital and which benefit from freight consolidation. No changes to servicing arrangements are proposed and the development would be made up of existing hospital uses relocating into this building, so there would not be a significant uplift in servicing requirements. On this basis, the transport issues raised at Stage 1 have been addressed, and the application is in accordance with the transport policies of the London Plan and draft London Plan.

Response to consultation

16 Lambeth Council publicised the application via site notices displayed in the vicinity of the site and a press notice in the local press. No representations were received.

17 The following statutory bodies and other groups also commented on the proposal:

- **Historic England** – No comment.
- **Greater London Archaeological Advisory Service (GLAAS)**- No objection subject to condition requiring a written scheme of archaeological investigation.
- **Westminster City Council**- no comment.
- **Thames Water**- No objection subject to condition controlling works within 5 metres of the strategic water main. Informatives were also recommended regarding compliance with relevant Thames Water requirements.
- **Metropolitan Police**- No objection subject to conditions requiring details of security measures prior to construction and confirmation of implementation of these measures prior to occupation.

Consultation conclusion

18 Having considered the above consultation responses, Lambeth Council has provided specific responses within its committee report and proposed various planning conditions and section 106 obligations in response to the issues raised, where applicable. Having had regard to this, GLA officers are satisfied that the statutory and non-statutory responses to the Council's consultation process do not raise any material planning issues of strategic importance that have not already been considered at Stage 1 and/or in this report.

Draft Section 106 agreement

19 The draft section 106 agreement includes the following provisions:

- Carbon off-set payment secured;
- Employment and Skills plan for construction phase.

Article 7: Direction that the Mayor is to be the local planning authority

20 Under Article 7 of the Order the Mayor could take over this application provided the policy tests set out in that Article are met. In this instance the Council has resolved to grant permission with conditions and a planning obligation, which satisfactorily addresses the matters raised at stage I, therefore there is no sound planning reason for the Mayor to take over this application.

Legal considerations

21 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor has the power under Article 6 to direct the local planning authority to refuse permission for a planning application referred to him under Article 4 of the Order. He also has the power to issue a direction under Article 7 that he is to act as the local planning authority for the purpose of determining the application and any connected application. The Mayor may also leave the decision to the local authority. In directing refusal the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice. If the Mayor decides to direct that he is to be the local planning authority, he must have regard to the matters set out in Article 7(3) and set out his reasons in the direction.

Financial considerations

22 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. Government Planning Practice Guidance emphasises that parties usually pay their own expenses arising from an appeal.

23 Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy.

24 Should the Mayor take over the application he would be responsible for holding a representation hearing and negotiating any planning obligation. He would also be responsible for determining any reserved matters applications (unless he directs the council to do so) and determining any approval of details (unless the council agrees to do so).

Conclusion

25 The strategic issues raised at consultation stage regarding sustainable development and transport have been appropriately addressed, and conditions and section 106 obligations secured. As such, the application complies with the London Plan and the draft London Plan and there are no sound reasons for the Mayor to intervene in this case.

for further information, contact GLA Planning Unit (Development & Projects Team):

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